

Section L – Instructions to Offerors
RFP 363431
SSRL B116 & B132 BPM HVAC Replacement

1. GENERAL INFORMATION

Section L – Instructions to Offerors provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. The Offeror's proposal must include all data and information requested by the ITO and must be submitted in accordance with these instructions. The proposal shall be compliant with the requirements as stated in the Statement of Work (SOW) and Technical Specifications. Non-conformance with the instructions provided in this ITO *may* result in an unfavorable proposal evaluation.

The University intends to award without discussions with respective Offerors. The University, however, reserves the right to conduct discussions if deemed in its best interest.

The evaluation process and method are described in Section M – Evaluation Factors for Award. For an Offeror to be eligible for a subcontract award with the University, the Offeror shall:

- Be registered in good standing (non-debarred) with the System for Award Management (SAM), the Official U.S. Government system that consolidated the capabilities of CCR/FedReg, ORCA, and EPLS. There is NO fee to register for this site. Entities may register at no cost directly at the SAM website: <http://www.SAM.GOV>
- Be registered in the University's procurement system of record: <https://suppliers.slac.stanford.edu/become-slac-supplier>
- Have a current Safety Qualification Form approved and valid through the award date of this RFP.

The University anticipates awarding one Firm Fixed Price subcontract.

PLEASE NOTE: That SLAC National Accelerator Laboratory is operated by Stanford University for the U.S. Department of Energy (DOE) making this a federally funded construction project. As such, the Offeror is being made aware of, in addition to other required labor postings, the DOE WH Publication 1321, which can be found on the following website: <https://www.dol.gov/sites/dolgov/files/WHD/legacy/files/fedprojc.pdf>



SUPPLY CHAIN MANAGEMENT

1.1 PROPOSAL SUBMITTAL INFORMATION

POINT OF CONTACT: The Senior Subcontract Administrator, Doreen Agbayani, is the sole point of contact for this acquisition. Address any questions or concerns you may have, in writing, to the Senior Subcontract Administrator via email: doreena@slac.stanford.edu. All exchanges of source selection information between the University and Offerors will be controlled by the Senior Subcontract Administrator.

MARKING OF PROPRIETARY/CONFIDENTIAL INFORMATION: Offerors shall properly mark and identify with a restrictive legend or information markings on pages of the proposal that contain Proprietary/confidential information.

Proposals must be valid for **One Hundred and Twenty (120)** days from the proposal due date. The Offeror shall make a clear statement in its proposal cover letter utilizing the following language. "The undersigned agrees that this offer is valid for Ninety days, and to furnish any or all items upon which prices are offered at the price set opposite each item, delivered via email, within the time specified in the schedule." Proposals shall be addressed to the Senior Subcontract Administrator:

SLAC National Accelerator Laboratory
2575 Sand Hill Road, Building 041
Menlo Park, California 94025
Attention: Doreen Agbayani

Pages exceeding the stated page limits stated will be removed and not considered as part of the evaluation. Most or all of the pages should be 8½ x 11-inch with 1 inch or greater margins and larger fonts. Forms, organization charts or drawings may be presented on 11 x 17-inch page. Use easily legible fonts such as black, 12-point, standard-form Arial or Times New Roman for main text. Slightly smaller fonts for charts, drawings, graphs, and schedules are acceptable as long as they are legible.

Pages should be numbered sequentially with page number at the bottom right of the page. Appendices should be clearly indexed with section dividers that allow easy search and navigation digitally.

2. PREPARATION OF PROPOSALS: Proposals shall be submitted, in searchable PDF, on the forms furnished or copies thereof, and must be manually signed if erasures or other changes appear on the forms; the person signing the proposal must initial each erasure or change.



SUPPLY CHAIN MANAGEMENT

2.1 VOLUME I – TECHNICAL PROPOSAL

The Volume I Technical Proposal must contain the following information, but **NOT** contain any pricing information. All **pricing information** shall be submitted in Volume II Price Proposal.

Cover Sheet

The cover sheet should include:

- Title: SSRL B116 & B132 BPM HVAC Replacement
- Volume I - Technical Proposal,
- Date of submission,
- General Subcontractor Name, and
- Contact information.

Factor 1 – Technical Approach

- Sub-factor 1.1, Project Approach: Submit a narrative with your approach to complete the scope of work described in the SOW.
- Sub-factor 1.2, Project Work Elements: Describe the general approach to execute the project work elements, including: coordination and communication with SLAC project personnel; pre-mobilization activities; material staging and transport; installation of major hardware; work practices in and about adjacent operations; dust mitigation; waste disposal; and demobilization.
- Sub-factor 1.3, Quality Assurance/Quality Control Plan: Submit a Quality Assurance/Quality Control plan to meet the SOW deliverables.
- Sub-factor 1.4, Assumptions: Provide a list of project-specific assumptions and clarifications made in preparation of your proposal to supplement the information contained in SLAC project statement of work (SOW), drawings and specifications.

Factor 2 – Safety

- Sub-factor 2.1 Describe how you plan to implement your on-site ES&H program for the project.
- Sub-factor 2.2 Provide background information on their environmental regulatory compliance status and enforcement history for the past 3 years. Offeror shall include all notices of violation stemming from environmental non-compliance and the supporting



SUPPLY CHAIN MANAGEMENT

documentation, including fines incurred and explanation of how the violations were addressed.

- Sub-factor 2.3
 - Submit form SLAC-I-730-0A21J-027-R010, Construction Subcontractor Safety Qualification Form (SQF) for the Offeror's company which shows evidence of your overall safety record.
 - If your Experience Modification Rate (EMR) is greater than 1.0, Offeror shall include OSHA 300 logs for self-performed work, for the past three years, and statements if there have been any fatalities or serious injuries.
 - Offerors with current safety approved status, through January 2026 are not required to submit new SQF. However, please state that it is on file.

Factor 3 – Schedule & Phasing Plan

- Submit a proposed schedule with the bid proposal. For all activities and long lead time materials, the proposed start and end dates, and any interdependencies shall be included. The goal is to complete as much work this summer down period as feasible. If the project cannot be completed during the FY26' summer downtime period, a phased plan will need to be provided to show what activities can be performed this summer down and what activities will need to move into FY27'.

Factor 4 – Project Management & Experience

- Sub-factor 4.1 Describe your team's proposed methodologies for providing comprehensive project management services and project team coordination, and providing prompt, effective and safe construction phase services.
- Sub-factor 4.2 Submit a written summary of Offeror's Key Personnel (including sub-tier contractors), identifying the proposed Project Manager, Project Superintendent. The summary must include the following:
 - Their qualifications for the identified role. The percentage of time each role will be assigned to the project and time dedicated to being on-site.
 - Specific examples of previous relevant projects that they supported.
 - A copy of their resume.

Factor 5 – Statement of Qualifications

The Offeror shall provide the following:

- Sub-factor 5.1 A current and valid California contractor's license appropriate to Offeror's trade.



SUPPLY CHAIN MANAGEMENT

- Sub-factor 5.2 A written statement regarding the following:
 - Neither the Offeror's firm, nor any of its owners or officers have been convicted of a crime involving the awarding of the contract of a government (U.S. Federal, State, and City) construction project, or the bidding or performance of a government contract.
 - Offeror must identify a local office in the San Francisco Bay Area that has been established a minimum of three years. The San Francisco Bay Area is defined as the following 10 counties: Santa Clara, San Mateo, San Francisco, Alameda, Contra Costa, Marin, Napa, Sonoma, Solano and Santa Cruz Counties.
 - Offeror shall have proven experience in the installation of scientific components and confirmed previously awarded projects with DOE's National Laboratories, the Department of Energy (DOE), the Department of Defense (DOD) and/or a federal facility.

2.2 VOLUME II – PRICE PROPOSAL

Cover Sheet

The cover sheet should include:

- Title: SSRL B116 & B132 BPM HVAC Replacement
- Volume II – Price Proposal,
- Date of submission,
- General Subcontractor Name, and
- Contact information.

Clearly stamp all company financial documents as "Business Sensitive" if applicable, on any included documents.

Business Documentation

Financial information is required from the General Contractor only. Offeror shall provide:

- Provide letter from primary surety firm confirming bonding capability for this project, maximum bonding capability for a single project and total bonding capability.
- Provide current Dun and Bradstreet Report.
- If the Dun and Bradstreet SER score is greater than 6, or if the Offeror does not participate in Dun and Bradstreet, provide three most current years of audited financial statements. Financial statements are not required with a SER score of 6 or below. SLAC has access to Dun and Bradstreet reports.
- Offeror's proposal must communicate acceptance to the SLAC Terms and Conditions, as indicated in the solicitation, including all attachments, and documents incorporated by reference. Requested exceptions to any of the solicitation documents must be



SUPPLY CHAIN MANAGEMENT

communicated at the time of the proposal submission. Note that any exceptions to the SLAC Terms and Conditions will require SLAC Legal approval.

Price

The Offeror is required to provide the following contract documentation:

- Submit RFP Section A (completed and signed form), acknowledgement of issued solicitation amendments.
- Submit RFP Section B with firm-fixed prices for each line item. All subcontract value totals to be provided in Section B, unless noted.
- Submit a price breakdown for each proposed firm-fixed-price item using Section L, Attachment A, Proposal Breakdown Sheet. The total must match the total price listed in Subcontract Section B (Supplies or Services and Price/Costs).

Contract Documentation

- Section H, (Special Terms and Conditions) completed with Key Personnel.
- Section J, (IIPP Form) shall be completed and signed.
- Section K, (Representations & Certifications) shall be completed and signed.

3. METHOD OF TRANSMISSION/ORGANIZATION/NUMBER OF COPIES/PAGE LIMITS:

Proposals must be submitted electronically in searchable PDF, as indicated in this Section L. The Offeror shall prepare the proposal as set forth in the Proposal Organization Table. The titles and contents of the volumes shall be as defined in this table, all of which shall be within the required page limits as specified. The contents of each proposal volume are described in the ITO paragraph as noted in the table below.

Proposal Organization Table:

Volume	ITO Section	Volume Title	Electronic Copies	Page Limit
I	2.1	Technical Proposal	1	100
II	2.2	Price Proposal	1	100

4. LATE PROPOSALS AND MODIFICATIONS:

Late Proposals will not be considered. Errors in Proposals must be identified No Later Than 3 business days after the proposal due date for corrections to be considered.

5. WITHDRAWALS OF PROPOSALS:

Proposals may be withdrawn by email, addressed as instructed for the proposal, and must be received from the Offerors prior to award.

6. RFP AMENDMENTS:



SUPPLY CHAIN MANAGEMENT

The right is reserved, as the interests of SLAC may require, to revise or amend the solicitation documents and drawings prior to the due date set for submission of proposals. Such revisions and amendments, if any, will be announced on an "Amendment of Solicitation/Subcontract Modification" form. Copies of such amendments may be issued and will be furnished to all prospective Offerors. If the revisions and amendments are of a nature which requires material changes in quantities or proposal prices or both, the date set for submission of proposals may be postponed by such number of days, as in the opinion of SLAC will enable the Offerors to develop their proposals. In such case, the Amendment of Solicitation/Subcontract Modification form will include an announcement of the new due date for receipt of proposals.

7. EXPLANATION TO OFFERORS:

Any explanation desired by an Offeror regarding the meaning or interpretation of the Request for Proposal, drawings, specifications, etc., must be requested in writing using the SLAC RFI's to Owner Question and Answer Log (Attachment A) and with sufficient time allowed for a reply to reach the Offeror before the due date for submission of proposals. Oral clarification of requirements or instructions provided by SLAC before the award of the Subcontract will not be binding. Questions containing Offeror's non-proprietary information and corresponding clarifications will be shared with all Offerors.

8. TAXES:

The Offeror may consult the provisions on taxes that are provided throughout the General Terms and Conditions and to the California State Board of Equalization Regulations relating to sales of machinery and equipment for delivery under construction contracts with the United States government. However, responsibility for determination of the applicability of California State Board of Equalization Regulations shall rest solely with the Offeror, and no representation or guarantee either expressed or implied is made by the Government or SLAC hereunder as to the application thereof. SLAC will not reimburse Offeror for taxes as a separate line item.

9. SPECIFIED PRODUCT AVAILABILITY:

Where the Technical Specifications, Statement of Work, or Drawings list a specific product, the Offerors may assume that the product is commercially available; however, availability within the required performance period may require payment, by the successful Subcontractor at no additional cost to SLAC, of premiums for expediting production or shipment. The Offerors are cautioned to confirm not only product prices, but costs associated with timely acquisition of the product as required to meet performance period requirements. The Offerors are required to notify the University Senior Subcontract Administrator prior to the proposal due date of any obvious product unavailability.

10. SPECIFIED PRODUCT OR METHOD COMPATIBILITY:

Where the Technical Specifications, Statement of Work, or Drawings list a specific product



SUPPLY CHAIN MANAGEMENT

or method, the Offerors may assume that the product or method is compatible with other requirements of the Subcontract. The Offerors are required to notify the University Senior Subcontract Administrator prior to the date set for receipt of proposals of any obvious incompatibility between a specified product or method and other requirements of the Subcontract.

11. EXCEPTIONS TO UNIVERSITY'S STANDARD TERMS AND CONDITIONS, PROVISIONS, AND/OR CLAUSES:

Offeror must identify any exceptions to SLAC terms and conditions or exceptions to any other element of the requirements that are a part of this RFP, with their proposal. SLAC will not entertain any exceptions not identified in the proposal submission. Exceptions taken may be cause for rejection of a proposal. Inclusion of any assumptions, clarifications, exclusions, or conditions may be cause for rejection of the proposal as non-responsive.

Attachments in Section L

Attachment A - SLAC Question & Answer Log

Attachment B – Proposal Breakdown